

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

HERMINIO ROBLES,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DENNIS POLANCO (SHIELD #22057), POLICE
OFFICER MICHAEL WAGER (SHIELD #2073),
POLICE OFFICER MICHAEL CAVANAUGH
(SHIELD #8844), POLICE OFFICER JOHN DOE,
and POLICE OFFICER JOHN ROE,

Defendants.

----- X

To the above named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 3, 2019

Yours, etc.
SIVIN & MILLER, LLP

By 
Andrew C. Weiss
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-Police Officer Dennis Polanco, Shield #22057, NYPD Transit Bureau District 11, 161 Street Station and River Avenue, Bronx, NY 10451

-Police Officer Michael Wager, Shield #2073, NYPD Transit Bureau District 11, 161 Street Station and River Avenue, Bronx, NY 10451

-Police Officer Michael Cavanaugh, Shield #8844, NYPD Mounted Unit, 553 W 53rd Street, New York, NY 10019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
HERMINIO ROBLES,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
DENNIS POLANCO (SHIELD #22057), POLICE
OFFICER MICHAEL WAGER (SHIELD #2073),
POLICE OFFICER MICHAEL CAVANAUGH
(SHIELD #8844), POLICE OFFICER JOHN DOE,
and POLICE OFFICER JOHN ROE,

Defendants.
-----X

Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter "the City") was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.
2. That prior to the institution of this action and within ninety (90) days from
the dates when the causes of action accrued herein, notices of claim and intention to sue were
duly served upon and filed with the defendants on behalf of plaintiff; that this action was not
commenced until the expiration of thirty (30) days after such notices of claim and intention to
sue were presented and defendants have neglected and/or refused to make adjustment or payment
thereon, and this action is being commenced within one year and ninety days after the causes of
action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, and maintained a police force known as the New York Police Department (hereinafter "the NYPD").

4. That at all times herein mentioned, defendant NYPD Officer Dennis Polanco (Shield #22057) (hereinafter "Polanco") was and is employed as an officer with the NYPD and the City.

5. That at all times herein mentioned, defendant NYPD Officer Michael Wager (Shield #2073) (hereinafter "Wager") was and is employed as an officer with the NYPD and the City.

6. That at all times herein mentioned, defendant NYPD Officer Michael Cavanaugh (Shield #8844) (hereinafter "Cavanaugh") was and is employed as an officer with the NYPD and the City.

7. That at all times herein mentioned, defendant NYPD Officer John Doe (hereinafter "Doe") was and is employed as an officer with the NYPD and the City.

8. That at all times herein mentioned, defendant NYPD Officer John Roe (hereinafter "Roe") was and is employed as an officer with the NYPD and the City.

9. That at all times herein mentioned, Polanco was acting within the course and scope of his employment and under color of state law as an officer with the NYPD.

10. That at all times herein mentioned, Wager was acting within the course and scope of his employment and under color of state law as an officer with the NYPD.

11. That at all times herein mentioned, Cavanaugh was acting within the course and scope of his employment and under color of state law as an officer with the NYPD.

12. That at all times herein mentioned, Doe was acting within the course and scope of his employment and under color of state law as an officer with the NYPD

13. That at all times herein mentioned, Roe was acting within the course and scope of his employment and under color of state law as an officer with the NYPD

14. That at all times herein mentioned, Officers Polanco, Wager, Cavanaugh, Doe, and Roe were each individually hired, screened, tested, interviewed, trained, retained, investigated, monitored, and supervised by the City and the NYPD.

15. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

16. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

17. That on November 7, 2017 at approximately 10:50 p.m. at or around the intersection of Jerome Avenue and East Kingsbridge Road, Bronx, NY, NYPD Officers Polanco, Wager, Cavanaugh, Doe, and Roe without legal provocation, probable cause, reasonable suspicion, or justification, and without a warrant, and without plaintiff's permission and consent, forcibly detained plaintiff without explanation, grabbed and seized plaintiff, forcibly threw plaintiff to the ground, held plaintiff on the ground, assaulted plaintiff by putting their knees into plaintiff's head and back, punching plaintiff, and otherwise used force against plaintiff that was not justified.

18. Following the initial force that knocked plaintiff to the ground, Polanco, Wager, Cavanaugh, Doe, and Roe proceeded to forcibly handcuff plaintiff and, without probable cause, placed plaintiff under arrest, forcibly assaulted him again by dragged him down a flight of stairs, and forcibly confined and imprisoned plaintiff and/or caused plaintiff to be confined and

imprisoned at various other locations, including a police precinct, a hospital, and Central Booking.

19. That the aforesaid actions by Polanco, Wager, Cavanaugh, Doe, and Roe were without legal provocation or justification, and were offensive and excessive under the circumstances.

20. That on or about November 8, 2017, Officers Polanco, Wager, Cavanaugh, Doe, and Roe also initiated and/or caused to be initiated against plaintiff a criminal prosecution in which plaintiff, without probable cause, was charged with various crimes including but not limited to resisting arrest, obstruction of governmental administration, attempted assault, and harassment of which plaintiff was innocent and of which Polanco, Wager, Cavanaugh, Doe, and Roe knew plaintiff to be innocent.

21. That in support of the criminal prosecution, on November 8, 2017 Polanco also executed a sworn accusatory instrument in which he made false accusations against plaintiff that he knew were false, including but not limited to, that plaintiff was attempted to obstruct an officer from effectuating an arrest, that plaintiff walked between train cars while the train was moving, that plaintiff attempted to walk away from Wager before he could be issued a summons, that plaintiff attempted to kick Wagner and Cavanaugh, and that plaintiff stated "Take me in, take me in."

22. That in support of the criminal prosecution, on December 19, 2017 Polanco also executed a sworn, superseding accusatory instrument in which he made additional false accusations against plaintiff that he knew were false, including but not limited to, that plaintiff kicked and flailed his legs, and twisted his hands and body, refusing to be handcuffed and that plaintiff's actions caused a crowd to form in the area.

23. That in support of the criminal prosecution, Polanco, Wager, Cavanaugh, Doe, and Roe made statements that were conveyed to the Office of the District Attorney that were false and that they knew were false, including but not limited to the statements set forth in paragraphs 21 and 22, *supra*.

24. That the aforementioned false statements and fabrications by Polanco, Wager, Cavanaugh, Doe, and Roe constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

25. That as a consequence of the aforesaid prosecution, plaintiff was required to appear in court multiple times and was restricted in his travel and liberty.

26. That on or about November 20, 2018, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

27. That the aforesaid actions by Polanco, Wager, Cavanaugh, Doe, and Roe were done intentionally and maliciously.

28. That as a result of the aforementioned actions by Polanco, Wager, Cavanaugh, Doe, and Roe plaintiff sustained severe physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare expenses and other economic loss, was deprived of his liberty and freedom, was damaged in his reputation, and has been otherwise damaged.

29. That at all times herein mentioned, each of the defendants observed the illegal and unconstitutional conduct of his fellow officers, had a reasonable opportunity to intervene to stop that conduct and/or to prevent that conduct from continuing, and deliberately failed and refused to do so.

30. That upon information and belief, prior to the events alleged herein Polanco, Wager, Cavanaugh, Doe, and Roe had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

31. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Polanco, Wager, Cavanaugh, Doe, and Roe had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

32. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Polanco, Wager, Cavanaugh, Doe, and Roe were unfit to act as a police officers.

33. That despite the City's and the NYPD's prior knowledge of Polanco's, Wager's, Cavanaugh's, Doe's, and Roe's unfitness and propensities, the City and the NYPD knowingly retained Polanco, Wager, Cavanaugh, Doe, and Roe as NYPD officers, thereby subjecting plaintiff to Polanco's, Wager's, Cavanaugh's, Doe's, and Roe's improper, illegal, and unconstitutional conduct.

34. That at all times hereinafter mentioned the actions of the City, Polanco, Wager, Cavanaugh, Doe, and Roe as described above were carried out in a reckless, deliberate, willful, wanton, malicious, and grossly negligent manner.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(State Law Claim for Assault and Battery)

35. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

36. That the aforesaid actions of the City, Polanco, Wager, Cavanaugh, Doe, and Roe constitute an assault and battery of plaintiff, for which Polanco, Wager, Cavanaugh, Doe, and Roe are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(State Law Claim for False Arrest/False Imprisonment)

37. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

38. That the aforesaid actions of City, Polanco, Wager, Cavanaugh, Doe, and Roe constitute a false arrest and false imprisonment of plaintiff, for which Polanco, Wager, Cavanaugh, Doe, and Roe are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(State Law Claim for Malicious Prosecution)

39. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

40. That the aforesaid actions of City, Polanco, Wager, Cavanaugh, Doe, and Roe constitute a malicious prosecution, done without probable cause, of plaintiff, for which Polanco, Wager, Cavanaugh, Doe, and Roe are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST POLANCO
WAGER, CAVANAUGH, DOE, AND ROE
(42 U.S.C. § 1983 Arising From Excessive Force, False Arrest/Imprisonment and Malicious Prosecution)

41. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

42. That the aforesaid actions by Polanco, Wager, Cavanaugh, Doe, and Roe in using excessive force against, falsely arresting, falsely imprisoning, and maliciously prosecuting plaintiff constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST POLANCO
WAGER, CAVANAUGH, DOE, AND ROE
(42 U.S.C. § 1983 Arising From Denial of Right to Fair Trial)

43. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

44. That the aforesaid actions by Polanco, Wager, Cavanaugh, Doe, and Roe constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST POLANCO
WAGER, CAVANAUGH, DOE, AND ROE
(42 U.S.C. § 1983 Arising From Failure to Intervene)

45. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

46. That the aforesaid actions by Polanco, Wagner, Cavanaugh, Doe, and Roe in failing and refusing to intervene to prevent and/or stop the illegal actions of their fellow

officers resulted in the aforementioned violations of plaintiff's civil rights, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

47. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

48. That the aforesaid actions by Polanco, Wager, Cavanaugh, Doe, and Roe and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of Polanco, Wager, Cavanaugh, Doe, and Roe.

EIGHTH CAUSE OF ACTION AGAINST THE CITY
(*Monell* Claim)

49. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

50. That the aforesaid actions by Polanco, Wager, Cavanaugh, Doe, and Roe and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Polanco, Wager, Cavanaugh, Doe, and Roe in which Polanco, Wager, Cavanaugh, Doe, and Roe violated the constitutional rights of citizens of the State of New York.

51. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants in the form of compensatory damages in an amount that exceeds the monetary jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, plaintiff also demands

punitive damages against Polanco, Wager, Cavanaugh, Doe, and Roe in an amount that exceeds the monetary jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against both defendants pursuant to 42 U.S.C. § 1988, and the costs and disbursements of this action.

Dated: New York, New York
June 3, 2019

Yours, etc.
SIVIN & MILLER, LLP

By 

Andrew C. Weiss
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

ANDREW C. WEISS, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff is that plaintiff does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff's file maintained by your affirmant's office.

Dated: New York, New York
June 3, 2019



ANDREW C. WEISS

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

HERMINIO ROBLES,

Plaintiff,

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and POLICE OFFICER JOHN ROE,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIVIN & MILLER, LLP
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New York, NY 10007
TEL: (212) 349-0300
FAX: (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Andrew C. Weiss hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.


ANDREW C. WEISS

Dated: New York, New York
June 3, 2019